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Lawmaker wants to ban California schools from serving food with Red 40, other dyes

August 7, 2024 | Mercury News, The: Web Edition Articles (San Jose, CA)
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OpenURL Link

A state lawmaker from the San Fernando Valley has resumed his push for a bill that would ban public schools in California from serving food or beverages containing synthetic food dyes such as Red 40 that child health advocates say can harm developing brains and cause neurobehavioral problems.

Assemblymember Jesse Gabriel, D-Encino, is the author of Assembly Bill 2316, the California School Food Safety Act, which proposes to prohibit food containing six synthetic food dyes – Red 40, Yellow 5, Yellow 6, Blue 1, Blue 2 and Green 3 – from use in school meals.

The dyes – often found in chips, candies, frosting, soda and sports drinks – are used to enhance the colors so food is more visually appealing but, Gabriel said, they don't change the taste. There are safer alternatives like pomegranate juice that could be used instead, he said during a press conference on Tuesday, Aug. 6.

State Superintendent of Public Instruction Tony Thurmond also took part in the press conference.

As someone who struggled with attention deficit hyperactivity disorder as a kid, and who now is raising a child with ADHD, Gabriel said this bill is personal.

"It just makes no sense when … our teachers are working so hard to help our students achieve that we would be putting all this effort and energy and love into our young people and then feeding them some food at lunch or at recess that is actually going to undermine all of that good work," Gabriel said.

"We as lawmakers and as parents have a responsibility to protect our kids," he added. "We have a responsibility to make sure that the food that we serve them in our public schools is not going to harm them and is not going to interfere with their ability to learn."

According to Gabriel, some school districts, including Los Angeles Unified, have already removed from their menus food items containing the dyes his bill is targeting.

Thurmond, who is sponsoring AB 2316, said during the press conference that he relied on the free lunch program as a student – as do many students today to meet their nutritional needs.

"This is about our kids. How else can I say it?" Thurmond asked.

The bill is scheduled for a key vote in the state Senate Appropriations Committee next week. If it passes out of that committee, it will head to the full state Senate for a vote. State lawmakers have until Aug. 31, the end of the legislative session, to send the bill to Gov. Gavin Newsom's desk.

Gabriel said the bill has strong bipartisan support. According to his office, the bill is endorsed by more than 70 organizations that represent teachers, school administrators, doctors, nurses, scientists, environmentalists and consumer protection advocates.

Supporters of the bill cite a 2021 study by the California Environmental Protection Agency's Office of Environmental Health Hazard Assessment that suggests that consuming synthetic food dyes can lead to hyperactivity and other neurobehavioral issues in children.

The report said that federal standards for safe levels of synthetic food dyes were established decades ago and don't

reflect more recent research, and that the percentage of children in the U.S. diagnosed with ADHD has increased substantially since.

If the bill becomes law, it would not go into effect until Dec. 31, 2027.

According to the text of the proposed bill, although campuses would be banned from serving food with the six listed artificial food dyes as part of their school meals, they could still sell items with these ingredients as part of a fundraising event if the sales take place off school premises or, if sold onsite, the sales occur at least a half hour after the end of the school day.

An earlier version of AB 2316 included titanium dioxide, an additive found in cheese and other dairy products to make them look whiter, in the list of banned food dyes.

But it was later taken out, Gabriel said, because dairy farmers opposed its inclusion.

"We made the decision to go ahead and remove that chemical in part because we really want this to be a bipartisan bill, and we want it to pass with strong bipartisan support," he said. "We think that is an important message."

If AB 2316 becomes law, it would be the first of its kind in the nation, said Gabriel, who is hoping that other states will follow suit.

He emphasized that his intent isn't to ban any food or product from the market but to encourage manufacturers to make "minor modifications" to their recipes to remove harmful chemicals.

During Tuesday's press conference, speakers said many countries already ban the ingredients listed in AB 2316. And in some cases, food manufacturers already sell the same products in other countries but without these particular dyes in them, they said.

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- **Citation (apa Style)**
  Tat, L. (2024, August 7). Lawmaker wants to ban California schools from serving food with Red 40, other dyes*Mercury News, The: Web Edition Articles (San Jose, CA)*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/19ADDE704378EA80.